

The Suit Valuation Act, 1977

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State of Jammu-Kashmir - Act

The Suit Valuation Act, 1977

JAMMU & KASHMIR

India

The Suit Valuation Act, 1977

Act 37 of 1977

Published on 11 September 1920

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The Suit Valuation Act, 1977

(Act

No. 37 of 1977

)

[Sanctioned by His Highness the Maharaja Sahib Bahadur for Chief Minister's endorsement No. 8372, dated 11 September, 1920 read with State Council Resolution No. 1, dated 8th April, 1925 (Notification No. 14-1-81).]

An Act to prescribe the mode of valuing certain suits for the purpose of determining the jurisdiction of Courts with respect thereto.

Whereas it is expedient to prescribe the mode of valuing certain suits for the purpose of determining the jurisdiction of Courts with respect thereto; it is hereby enacted as follows

1.

Name, extent and commencement.

- This Act may be called the Suits Valuation Act, 1977.

(2)

It extends to the whole of Jammu and Kashmir State. It shall come into force on the 1st day of Baisakh, 1978.

Part I ? Suits relating to Land

2.

Omitted

3.

Power of High Court to make rules determining value of land for jurisdictional purposes.

(1)

The High Court may, with the previous sanction of [the Government]

[Substituted for 'His Highness' by Act X of 1996.]

, make rules for determining the value of land for purposes of jurisdiction in the suits mentioned in the Court-fees Act, section 7, paragraph (v) and (vi), and paragraph (x), clause (d).

(2)

The rules may determine the value of any class of land, or of any interest in land, in the whole or any part of a local area and may prescribe different values for different places within the same local area.

4.

Valuation of relief in certain suits relating to land not to exceed the value of the land.

- Where a suit mentioned in the Court-fees Act, section 7, paragraph (iv), or Schedule II, article 17, relates to land or an interest in land of which the value has been determined by rules under the last foregoing section, the amount at which for purposes of jurisdiction the relief sought in the suit is valued shall not exceed the value of the land or interest as determined by those rules.

5.

Enforcement of rules.

(1)

Omitted

(2)

A rule under section 3 shall not take effect till the expiration month after the rule has been published in the Jammu and Kashmir Government Gazette.

6.

Omitted

Part II ? Other suits

7.

Omitted,

8.

Court-fee value and jurisdictional value to be the same in certain suits.

- Where in suits other than those referred to in the Court-fees Act, section 7, paragraphs (v), (vi) and (ix) and paragraph (x) clause (d), court-fees are payable ad valorem under the Court-fees Act, the value as determinable for the computation of court-fees and the value for purposes of jurisdiction shall be the same.

9.

Determination of value of certain suits by High Court.

- When the subject matter of suits of any class, other than suits mentioned in the Court-fees Act, section 7, paragraph (v) and (vi) and paragraph (x) clause (d), is such that in the opinion of the High Court it does not admit of being satisfactorily valued, the High Court may, with the previous of [the Government]

[Substituted for 'His Highness' by Act X of 1996.]

, direct that suits of the class shall, for the purposes of the Court-fees Act, and of this Act and any other enactment for the time being in force, be treated as if their subject-matter were of such value as the High Court thinks fit to specify in this behalf.

10.

Omitted

Part III ? Supplemental Provisions

11.

Procedure where objection is taken on appeal or revision that a suit or appeal was not properly valued for jurisdictional purposes.

(1)

Notwithstanding anything in section 99 of the Code of Civil Procedure, an objection that by reason of the over-valuation or undervaluation of a suit or appeal a Court of first instance or lower appellate Court which had not jurisdiction with respect to the suit or appeal exercised jurisdiction with respect thereto shall not be entertained by an appellate Court unless-

(a)

the objection taken in the Court of first instance at or before the hearing at which issues were first framed and recorded, or in the lower appellate Court in the memorandum of appeal to that Court, or

(b)

the appellate Court is satisfied, for reasons to be recorded by it in writing, that the suit or appeal was overvalued or under-valued, and that the over-valuation or under valuation thereof has prejudicially affected the disposal of the suit or appeal on its merits.

(2)

If the objection was taken in the manner mentioned in clause (a) sub-section (1), but the appellate Court is not satisfied as to both the matters mentioned in clause (b) of that sub-section and has before it the materials necessary for the determination of the other grounds of appeal to itself, it shall dispose of the appeal as if there had been no defect of jurisdiction in the Court of first instance or lower appellate Court.

(3)

If the objection was taken in that manner and the appellate Court is satisfied as to both those matters and has not those materials before it, it shall proceed to deal with the appeal under the rules applicable to the Court with respect to the hearing of appeals; but if it remands the suit or appeal, or frames and refers issues for trial, or requires additional evidence to be taken, it shall direct its order to a Court competent to entertain the suit or appeal.

(4)

The Provisions of this section with respect to an appellate Court shall, so far as they can be made applicable, apply to a Court exercising revisional jurisdiction under section 115 of the Code of Civil Procedure or other enactment for the time being in force.

12.

Omitted

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